JOHN GARIKAYI GEZA
versus
PLUKCEDES GEZA (nee CHITATE)
and
REGISTRAR OF DEEDS, BULAWAYO (N.O)
and
THE SHERIFF OF HIGH COURT, BULAWAYO

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE; 23 September 2025 and 28 May 2026

Opposed Application

D.Mujaya for the applicant
The first respondent in person

PHILLIPS J: The applicant has approached the court seeking a declaratur praying for an order as follows:

> "IT IS DECLARED THAT:
>
> 1. The application be and is hereby granted.
>
> 2. The contract concluded between Applicant and 1st Respondent that Applicant takes over Stand 6345 Kwekwe Township of Stand 2274 Que Que Township held under Deed of Transfer Number 2596/2006 as his sole and exclusive property and that 1st Respondent takes over Stand 6346 Kwekwe Township of Stand 2274 Que Que Township held under Deed of Transfer No.2525/2006 as her sole and exclusive property, thereby compromising the orders of this Court issued under cases number HC 2024/10 and HC 5699/21 is still extant and binding on the parties.
>
> IT IS CONSEQUENTLY ORDERED THAT:
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> 3. Applicant shall take Stand 6345 Kwekwe Township of Stand 2274 Que Que Township held under Deed of Transfer No. 2596/2006 as his sole and exclusive property.
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> 4. 1st Respondent shall take Stand 6346 Kwekwe Township of Stand 2274 Que Que Township held under Deed of Transfer No.2525/2006 as her sole and exclusive property.

5. 1st Respondent be and is hereby compelled to relinquish her fifty percent shares in Stand 6345 Kwekwe Township of Stand 2274 Que Que Township held under Deed of Transfer Number 2596/2006 in favour of the Applicant and sign all necessary documents to enable 2nd Respondent to transfer Stand 6345 Kwekwe Township of Stand 2274 Que Que Township held under Deed of Transfer Number 2596/2006 into Applicant's names within ten (10) days of the order of this court failing which 3rd Respondent be and is hereby authorized to sign all necessary documents on behalf of the 1st Respondent.

6. Applicant be and is hereby compelled to relinquish his fifty percent shares in Stand 6346 Kwekwe Township of Stand 2274 Que Que Township held under Deed of Transfer Number 2525/2006 in favour of 1st Respondent and to sign all necessary documents to enable 2nd Respondent to transfer ownership of Stand 6346 Kwekwe Township of Stand 2274 Que Que Township held under Deed of Transfer Number 2525/2006 into 1st Respondent's names within ten (10) days of the order of this court failing which 3rd Respondent be and is hereby authorized to sign all necessary documents on behalf of the Applicant.

7. 1st Respondent be and is hereby ordered to pay costs of suit on a legal practitioner and client scale if she opposes this application."

The first respondent is opposed to the application.

Factual Background

The background to this application is common cause. The applicant was once married to the first Respondent and the marriage relationship was terminated by a consented divorce in July 2012. The parties agreed and signed a Consent Paper on 6 July 2012 which regulated their property distribution. The Applicant was to take over Stand 6345 Kwekwe Township of Stand 2274 Que Que Township and Stand 6346 Kwekwe Township of Stand 2274 Que Que Township Situate in the district of Que Que on condition that he buys out first Respondent's half share in the said properties by paying to her a sum of US$43 000 over a period of six (6) months between 31st July 2012 and 31st December 2012. The Applicant failed to buy out the first respondent. Thereafter the estate agent who was to sell the properties also failed to perform in terms of a further court order that led to an agreement between the applicant and the first respondent which agreement the applicant argues compromised the court orders.

The applicant's position is that on the 10 January 2024 he made a written offer to the first Respondent in terms of which he offered to take over Stand 6345 Kwekwe Township of Stand 2274 Que Que Township held under Deed of Transfer Number 2596/2006 as his sole and exclusive property whilst first Respondent was to take over Stand 6346 Kwekwe Township of

Stand 2274 Que Que Township held under Deed of Transfer No.2525/2006 as her sole and exclusive property. He further avers that on the 5 February 2024, the first Respondent unequivocally accepted Applicant's offer in writing and the acceptance letter was attached to the applicant's Founding Affidavit. The applicant's argument is that their agreement compromised the court orders and created a novation which he then transaction on the basis of.

The first respondent is opposed to the applicant's position arguing that she never signed a compromise agreement. Her argument is that the Applicant has failed to meet the requirements for an application of this nature "*as the right he alleges is based on an unsigned document, which, according to …authorities, has no effect at all*."

The Law

***In GOLDEN BEAMS DEVELOPMENT (PVT) LTD versus FREDSON MUNYARADZI MABHENA,* HH 296-21** DUBE J (as she was then) discussed compromise agreements and stated as follows quoting RH Christie in Business Law in Zimbabwe:

> "A compromise is defined by RH Christie in Business Law in Zimbabwe at p 108 as follows, "Compromise is the settlement by agreement of disputed obligations and is a form on novation, replacing the disputed obligations by the obligations created by the agreement of compromise""

In that same matter she quoted ***GEORGIAS AND ANOR V STANDARD CHARTERED BANK SC 183/98*** as follows:

> "In Georgias and Anor v Standard Chartered Bank SC 183/98 as follows;
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> "Compromise, or transactio, is the settlement by agreement of disputed obligations, or of a lawsuit the issue of which is uncertain. The parties agree to regulate their intention in a particular way, each receding from his previous position and conceding something - either diminishing his claim or increasing his liability. See Cachalia v Harberer & Co 1905 TS 457 at 462 infine; Tauber v Von Abo 1984 (4) SA 482 (E) at 485G-I; Karson v Minister of Public Works 1996 (1) SA 887 (E) at 893F-G. The purpose of compromise is to end doubt and to avoid the inconvenience and risk inherent in resorting to the methods of resolving disputes. Its effect is the same as res judicata on a judgment given by consent. It extinguishes ipso jure any cause of action that previously may have existed between the parties, unless the right to rely thereon was reserved. See Nagar v Nagar 1982 (2) SA 263 (ZH) at 268E-H. As it brings legal proceedings already instituted to an end, a party sued on a compromise is not entitled to raise defences to the original cause of action. See Hamilton v van Zyl 1983 (4) SA 379 (E) at 383H. But a compromise induced by fraud, duress, justus error, misrepresentation, or some other ground for rescission, is voidable at the instance of the aggrieved party, even if made an order of court. See Gollach & Gomperts (1967) (Pty) Ltd v Universal Mills & Produce Co Ltd and Ors 1978 (1) SA 914 (A) at 922H."" See also *FBC* v *Hwenga* 2016 (1) ZLR 451(H)".

In that case, DUBE J (as she then was) comprehensively discussed the subject of compromise agreements, going further to say as follows:

> "A compromise agreement is an agreement of the parties to amicably settle a dispute. A compromise agreement is a contract and is governed by the general principles of contract law. The formalities of a compromise are, offer and acceptance, consideration and capacity to enter into the contract. There must be mutual intent to settle the dispute and bring it to an end and reciprocal concessions in settlement of the dispute. 2. A compromise enables the parties to settle the dispute outside court. The compromise agreement has the effect of creating new rights and obligations between the parties separate from the original cause of action. It extinguishes the original cause of action which becomes res judicata thereby creating new obligations. Once a compromise agreement has been entered into, the defendant has no entitlement to raise defences to the original cause of action."

DUBE J did justice to the subject.

I am also guided by BHUNU JA in ***DAVID RICHARD KEMPEN v CARROL KEMPEN SC14/2016*** who also discussed contracts and agreements and stated as follows on the subject:

> "Our legal system pays great honour to the doctrine of sanctity of contract to the effect that lawful agreements are binding and enforceable by the courts. In *Book* v *Davidson* 1988 (1) ZLR at 369F, the court held that, it is in the public interest that agreements freely entered into must be honoured."

Application of the Law

The law is clear on agreements. Where there is an offer which is clearly and unequivocally accepted, an agreement is formed. Parties who are subject to extant court orders are also able to agree in order to end a dispute or regulate a position. After the applicant had failed to buy out the first respondent, the real estate agent had also failed to perform in terms of the court order. The issue of the two properties had remained unresolved from 2012 until 2022, then again until the applicant suggested that they each take a stand as their sole properties. The first respondent's acceptance in the letter dated 5 February 2024 is clear, it even accepted "as per the conditions given". The parties having agreed and voluntarily varied the consent paper, the applicant went on to act upon that agreement. The first respondent cannot be permitted to change the position now. A compromise had been reached and this court respects the agreement that was reached. The agreement further does not prejudice the first respondent. In fact, it finalizes a 14 year long position and saves both parties from having to return to court again. The

sanctity of their 5 February 2024 agreement must be guarded in the interests of finality. The applicant's application is therefore granted.

Disposition

The application is granted along with the consequences of the same.

Each party is to pay their own costs.

PHILLIPS J……

Mawadze and Mujaya Legal Practitioners, Applicant's Legal Practioners.